

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RUSSELL OLEVSKY,

Petitioner

VS.

JONATAS DE PAULA OLIVEIRA,

Respondent

) Case Number: FDI-22-797024

) Hearing Date: June 4, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: ORDER RESPONDENT TO ADD ME ON HIS HEALTH

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Russell Olevsky and Respondent Jonatas De Paula Oliveira.
- 2) On 9/28/22, Petitioner filed a Petition for Dissolution indicating the date of marriage is 7/6/22 and date of separation is 8/31/22 for a marriage of 2 months.
- 3) On 10/27/22, Respondent filed a Response and Request for Dissolution indicating the date of marriage is 7/4/22 and date of separation is 9/31/22 for a marriage of 3 months.
- 4) On 4/16/26, Petitioner filed a Request for Order (RFO) seeking an order for Respondent to add Petitioner to his health insurance. Petitioner states that he recently lost his health insurance because he was covered under the AIDs Drug Assistance Program (ADAP), which requires income above 138% of the poverty level; however, Petitioner's income has dipped below that threshold. Petitioner requests Respondent be ordered to add him to his health insurance because Respondent is employed by the University of California and has insurance available at a reasonable cost through his employer.

- 1 5) On 5/4/26, Respondent filed a Responsive Declaration in opposition to Petitioner's RFO.
2 Respondent asserts that adding Petitioner to his health insurance would impose significant
3 financial hardship on him and increase his costs from approximately \$45 monthly to \$300
4 monthly. Respondent states he has ongoing medical expenses related to diagnosed heart failure.
5 6) On 5/27/26, Petitioner filed a Reply Declaration disputing that adding a dependent to
6 Respondent's insurance would impose significant financial hardship; however, Petitioner offers
7 to reimburse Respondent up to \$3,000 annually for insurance coverage. Petitioner states he needs
8 the best possible insurance because he is HIV positive.

9 **B. Findings and Order**

- 10 1) Petitioner's request that the Court order Respondent to add him to his health insurance is
11 DENIED.
12 2) The court generally will not order one party be added to another party's employer-based health
13 insurance plan as a dependent during a dissolution proceeding.
14 3) Further, Petitioner was not previously covered on Respondent's employer-based health insurance;
15 therefore, there is no basis for the Court to maintain the status quo.
16 4) This marriage is a very short-term marriage, so the parties are encouraged to focus on resolution.
17 5) To advance in the dissolution process, either party may file an At Issue Memorandum to request a
18 Status Conference at which time a Judicial Settlement Conference or trial date can be requested if
19 it is determined that the parties are ready to proceed.
20 6) The parties are encouraged to seek assistance from the ACCESS Center. Information for
21 contacting the ACCESS Center can be found here: [https://sf.courts.ca.gov/access-legal-self-help-](https://sf.courts.ca.gov/access-legal-self-help-center)
22 [center](https://sf.courts.ca.gov/access-legal-self-help-center).
23 7) The Court will prepare the Findings and Order After Hearing.
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